

complaint

Mr and Mrs F complain that U K Insurance Limited (UKI) has unreasonably declined a claim on their home insurance policy.

background

Rain water leaked in through the roof of Mr and Mrs F's home and caused some internal damage. They made a claim for the repair of the roof and the internal damage which they said had been caused by a storm.

UKI appointed a loss adjuster to review the damage. The report said that there was no evidence of any storm damage to the roof and the problem was most likely due to general maintenance issues. But it accepted that the internal damage had been caused by an unexpected ingress of rainwater.

UKI declined the claim for repairs to the roof and agreed to pay for the cost of the internal repairs. UKI said that if Mr and Mrs F provided a specialist roofers report showing that the roof had been damaged by a storm it would reconsider its decision. Mr and Mrs F didn't think UKI's loss adjuster was very professional or that this was a reasonable response.

Our adjudicator didn't think that the complaint should be upheld. She didn't think that the weather around the time of the claim was bad enough to be considered a storm or that there was enough evidence it had damaged the roof. Mr and Mrs F didn't agree with this opinion and provided additional information about storm warnings in their area around the time of the claim.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

UKI has agreed to pay for the cost of the internal repairs and I will not comment on this aspect of the claim.

There is clearly a problem with Mr and Mrs F's home which is allowing rain water to get into the property. But that doesn't mean it is necessarily storm damage and that UKI is responsible for its repair.

When considering a claim for storm damage there are three questions that I need to consider:

1. Is there evidence of a storm in the locality around the time of the claim?
2. Is the damage typical of that which would be caused by a storm?
3. Was the storm the main cause of the damage?

For a claim to be upheld the answer to all three questions must be yes.

I consider storm conditions to include unusual violent winds which may or may not be accompanied by heavy rain. I have looked at all of the evidence for weather conditions in the days before the claim was made. The evidence shows there were consistently strong winds over a period of time. On two occasions the winds reached a level that I would consider to be just in the range for storm conditions. But I think it is unlikely that winds of this level

would've caused damage to a well maintained roof. The very heavy rain came a few days later.

Mr and Mrs F haven't provided any evidence that there is damage to their roof that was caused by a storm. The loss adjuster's report provided by UKI says that there is no evidence of any storm damage. I know Mr and Mrs F don't think that the adjuster did a very good job. But it is the only professional evidence I have available to consider.

Given the high profile storm warnings for their area, I can understand why Mr and Mrs F think this must have caused the damage that let rainwater leak into their home. But there is no evidence available of any storm damage to their roof. UKI has said that it will review any expert report that Mr and Mrs F provide showing there is storm damage. I think this is a reasonable response and I don't require UKI to take any further action concerning this aspect of the claim.

my final decision

My final decision is to not uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr and Mrs F to accept or reject my decision before 12 September 2016.

John Thornton
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